

25STCV18114 25STCV18114

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Case Number: 25STCV18114 Hearing Date: September 28, 2026 Dept: 406

KRISTOPHER

J. FARM,

Plaintiff,

v.

FCA

US LLC, et al.,

Defendants.

Case No.: 25STCV18114

Hearing Date: September 28, 2026

[TENTATIVE] order RE:

Defendant fca us llc's motion for
summary judgment

BACKGROUND

On June 23, 2025, Plaintiff

Kristopher J. Farm ("Plaintiff" or "Farm") filed an action against FCA US LLC
("FCA"), JRDTSP

LLC dba Scott Robinson Chrysler Dodge Jeep Ram (erroneously sued as Scott
Robinson Chrysler Dodge Jeep Ram) ("JRDTSP") and Does 1 through 10

(collectively "Defendants") asserting causes of action for (1) violation of Civil Code section 1793.2, subdivision (d), (2) violation of Civil Code section 1793.2, subdivision (b), (3) violation of Civil Code section 1793.2, subdivision (a)(3), (4) breach of implied warranty of merchantability (Civil Code sections 1791.1, 1794, 1795.5), (5) negligent repair, and (6) fraudulent inducement concealment. This action arises out of Plaintiff's purchase of a 2018 Chrysler Pacifica ("Vehicle") allegedly manufactured and/or distributed by Defendant FCA.

Plaintiff filed a First Amended Complaint ("FAC") on October 23, 2025.

JRDTSP filed an Answer on November 19, 2025, and FCA filed an Answer on January 22, 2026.

On June 29, 2026, Defendant FCA filed the instant Motion for Summary Judgment ("MSJ"). No opposition has been filed.

LEGAL STANDARD

A

party seeking summary judgment has the burden of producing evidentiary facts sufficient to entitle him/her to judgment as a matter of law. (Code Civ. Proc., §437c, subd. (c).) The moving party must make an affirmative showing that he/she is entitled to judgment irrespective of whether or not the opposing party files an opposition. (Villa v. McFerren (1995) 35 Cal.App.4th 733, 742-743.) Thus, "the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact." (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519 (citing Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850).)

When

a plaintiff or cross-complainant seeks summary judgment, he/she must produce admissible evidence on each element of each cause of action on which judgment is sought. (Code Civ. Proc., §437c, subd. (p)(1).) When a defendant or cross-defendant seeks summary judgment, he/she must produce admissible evidence

showing that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. (Id. at §437c, subd. (p)(2).) Once the initial movant's burden is met, then the burden shifts to the opposing party to show, with admissible evidence, that there is a triable issue requiring the weighing procedures of trial. (Id. at §437c, subd. (p).) The opposing party may not simply rely on his/her allegations to show a triable issue but must present evidentiary facts that are substantial in nature and rise beyond mere speculation. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 162.) Summary judgment must be granted "if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.)

DISCUSSION

On October 23, 2025, Plaintiff filed the operative First Amended Complaint ("FAC") asserting the following causes of action against Defendant FCA: violation of Civil Code section 1793.2, subdivision (d), violation of Civil Code section 1793.2, subdivision (b), violation of Civil Code section 1793.2, subdivision (a)(3), breach of implied warranty of merchantability (Civil Code sections 1791.1, 1794, 1795.5), and fraudulent inducement concealment.

On January 5, 2026, the Court sustained FCA's demurrer to the first, second, third, and sixth causes of action without leave to amend. Thus, the only remaining cause of action asserted against FAC is the breached of implied warranty of merchantability pursuant to Civil Code sections 1791.1, 1794, and 1795.5.

FCA argues that there is no triable issue of material fact as to the remaining cause of action because (1) Plaintiff does not have any evidence that the Vehicle purchased on April 13, 2018, was unmerchantable during the one-year implied warranty period and (2) there is no privity between Plaintiff and FAC with respect to the sale of the Vehicle.

FCA presents the following evidence in support of its MSJ: (a) Retail Installment Sale Contract between Plaintiff and Defendant JRDTSP, (b) FAC filed on October 23, 2025, (c) Plaintiff's initial disclosures dated November 11, 2025, and (d) Warranty Detail Report, produced by FCA.

Based on this evidence, FCA states that on April 13, 2018, Plaintiff purchased the Vehicle from Defendant JRDTSP. (Undisputed Material Facts ("UMF"), No. 1.) The implied warranty of merchantability and other express warranties commenced on the date of purchase on April 13, 2018. (UMF, No. 2.) Plaintiff's initial disclosures identify no repair order or other evidence establishing an alleged defect rendered the Vehicle unmerchantable during the implied warranty period, which expired on April 13, 2019. (UMF, No. 3.) FCA's Warranty Detail Report for the Vehicle reflects no warranty repairs occurring between April 13, 2018 and April 13, 2019. (UMF, No. 4.)

FCA argues that Plaintiff cannot produce any evidence to demonstrate that the Vehicle was unmerchantable during the implied warranty period, which extended from April 13, 2018, through April 13, 2019, as confirmed in the FAC ("the duration is not to exceed one-year"). (FAC ¶181.) Furthermore, Plaintiff's claim also fails because there is no privity of contract between Plaintiff and FCA as Plaintiff purchased the Vehicle from a third-party dealership and FCA was not a party to this sales contract.

Pursuant to the implied merchantability warranty, "every sale of consumer goods that are sold at retail in this state shall be accompanied by the manufacturer's and the retail seller's implied warranty that the goods are merchantable." (Civ. Code, §1792; Brand v. Hyundai Motor America (2014) 226 Cal.App.4th 1538, 1545.) Merchantability means that the goods ""(1) [p]ass without objection in the trade under the contract description. (2) [a]re fit for the ordinary purposes for which such goods are used. (3) [a]re adequately contained, packaged, and labeled. [and] (4) [c]onform to the promises or affirmations of fact made on the container or label." (Civ. Code, §1791.1; Mexia v. Rinker Boat Co., Inc. (2009) 174 Cal.App.4th 1297, 1303.) "The implied warranty of merchantability may be breached by a latent defect undiscoverable at the time of sale." (Mexia, 174 Cal.App.4th at 1305.) "In the case of a latent defect, a product is rendered unmerchantable, and the warranty of merchantability is breached, by the existence of the unseen defect, not by its subsequent discovery... Thus, although a defect may not be discovered for months or years after a sale,

merchantability is evaluated as if the defect were known.” (Ibid.)

The

relevant question is whether evidence supports a finding that a defect rendering the product unmerchantable existed while the implied warranty was in effect. The Court finds that FCA has satisfied its initial evidentiary burden of showing that Plaintiff lacks evidence to show that a defect rendering the Vehicle unmerchantable existed during the period when the implied warranty was in effect. Plaintiff has not presented any evidence to raise a triable issue of material fact supporting an inference that the Vehicle was unmerchantable during the applicable period. Defendant's MSJ is granted on this ground.

As

to Defendant's argument that the cause of action fails for lack of contractual privity, Defendant cites to the 9th Circuit Court of Appeals case *Clemens v. DaimlerChrysler Corp.*, in which the Court noted that under the California Commercial Code, vertical contractual privity is required between plaintiff and defendant for a breach of warranty claim. (*Clemens v. DaimlerChrysler Corp.* (2008) 534 F.3d 1017, 1023.) However, in contrast to the California Uniform Commercial Code, there is no privity requirement under the Song-Beverly Act. (*Keegan v. Am. Honda Motor Co.* (2012) 838 F.Supp.2d 929, 947 (“California courts reject the proposition that a party who does not alleged vertical privity cannot state a class claim for breach of the implied warranty of merchantability and hold that the Song-Beverly Consumer Warranty Act did away with the vertical privity requirements that apply to implied warranty causes of action”); *Davis v. Nissan North America, Inc.* (2024) 100 Cal.App.5th 825, 842.) Thus, summary judgment is not granted on this ground.

CONCLUSION

For the reasons provided herein, Defendant's Motion for Summary Judgment is GRANTED.